

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Matthew Chaves	Team: Squad #12	CCRB Case #: 201709191	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Sunday, 11/05/2017 12:15 PM	Location of Incident: East 138th Street and Alexander Avenue	18 Mo. SOL 5/5/2019	Precinct: 40		
Date/Time CV Reported Mon, 11/06/2017 4:45 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 11/06/2017 4:45 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Robert Mciver	13892	951989	040 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Jordan Abidin	18265	958211	040 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Robert Mciver	Force: Police Officer Robert McIver used physical force against § 87(2)(b)	A . Exonerated
B . POM Robert Mciver	Discourtesy: Police Officer Robert McIver spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . POM Robert Mciver	Off. Language: Police Officer Robert McIver made remarks to § 87(2)(b) based upon race.	C . Unsubstantiated
D . POM Robert Mciver	Abuse: Police Officer Robert McIver threatened to arrest § 87(2)(b)	D . Exonerated

Case Summary

On November 6, 2017, § 87(2)(b) filed this complaint with the CCRB over the phone.

At approximately 12:15 p.m. on November 5, 2017, § 87(2)(b) was walking across the intersection Alexander Avenue and East 138th Street in the Bronx during the running of the New York City Marathon. Though the race's route along Alexander Avenue separated § 87(2)(b)'s position on the southeastern corner of the intersection from his intended destination near the southwestern corner, § 87(2)(b) attempted to cross the street through the path of the runners. As he crossed Alexander Avenue, his path was blocked by Police Officer Jordan Abidin of the 40th Precinct. Police Officer Robert Mciver of the 40th Precinct approached then § 87(2)(b) as well and explained that he was not allowed to cross the street due to the marathon.

§ 87(2)(b) attempted to walk around the officers, and Police Officer Mciver stopped him from doing so by placing a hand on his body. Police Officer Mciver then allegedly grabbed § 87(2)(b)'s arm and twisted it behind his body (**Allegation A: Force: Physical Force: Exonerated**). Police Officer Mciver then walked § 87(2)(b) back to the southeastern corner of the intersection. Police Officer Mciver allegedly told § 87(2)(b) "You a stupid nigger" as he was escorting § 87(2)(b) across the street (**Allegation B: Discourtesy: Word: Unsubstantiated** and **Allegation C: Offensive Language: Race: Unsubstantiated**).

Police Officer Mciver released § 87(2)(b) in the vicinity of the southeastern corner of the intersection. § 87(2)(b) then asked Police Officer Mciver to identify himself, and Police Officer Mciver did so. § 87(2)(b) began recording his interaction with Police Officer Mciver, and asked him to identify himself again. Police Officer Mciver then approached § 87(2)(b) and allegedly twisted his arm behind his back for the second time (**within Allegation A: Force: Physical Force: Exonerated**). As he allegedly restrained § 87(2)(b) Police Officer Mciver told § 87(2)(b) that if he did not leave the area then he would be arrested (**Allegation D: Abuse of Authority: Threat of Arrest: Exonerated**).

The investigation obtained one cellphone video of a portion of this incident from § 87(2)(b). This recording is embedded below and attached to IA #12 (**Board Review 01**).

Findings and Recommendations

Allegation A: Force: Police Officer Robert Mciver used physical force against § 87(2)(b)

§ 87(2)(b) was interviewed at the CCRB on November 9, 2017 (**Board Review 02**). Police Officer Mciver was interviewed on January 30, 2018 (**Board Review 03**). Police Officer Abidin was interviewed on February 8, 2018 (**Board Review 04**).

In his sworn statement, § 87(2)(b) stated that Police Officer Abidin spoke to him for approximately two or three seconds, saying "You have your headphones in your ear, you can't cross here." Police Officer Abidin then said that § 87(2)(b) needed to go into the nearby train station, cross under East 138th Street, and then come back up to street level to reach the southwest corner of the intersection.

Before § 87(2)(b) could say anything, Police Officer Mciver stepped towards him and grabbed § 87(2)(b)'s right arm at the wrist and at the bicep, twisted it behind his back, and turned § 87(2)(b) so that he was facing east. § 87(2)(b) was “walked” back across Alexander Avenue with Police Officer Mciver holding his arm fully behind his back. Police Officer Mciver forced § 87(2)(b) to walk in that direction by applying forward pressure on his arm, but § 87(2)(b) was not resisting. He walked of his own volition and was not bodily pushed or dragged at any point. § 87(2)(b) did not sustain any injury from this use of force.

§ 87(2)(b) was then walked fully on to the eastern sidewalk of Alexander Avenue, at which point Police Officer Mciver released him. § 87(2)(b) then took out his phone and began to record a video. Police Officer Mciver turned around approached § 87(2)(b) again, grabbed his right arm (with which § 87(2)(b) was holding his phone), and twisted it behind his back in the same manner as when he was leading § 87(2)(b) across the street. This caused the phone to fall on to the sidewalk. § 87(2)(b) did not allege that Police Officer Mciver intentionally knocked his phone down. § 87(2)(g) .) § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

In his interview, Police Officer Mciver stated that both he and Police Officer Abidin explained to § 87(2)(b) that he needed to go back across the street, go into the subway station, walk under the street, and exit via the other subway access point. The officers asked § 87(2)(b) to use this route “a few times,” and had to “reiterate” this to him because he repeatedly insisted on using his current route to get to his home.

§ 87(2)(b) then tried to walk around the officers. Police Officer Mciver prevented this by extending his right arm at a 90-degree angle to his torso with his hand flat (not in a fist) and placed that hand on an unspecified part of § 87(2)(b)'s body. § 87(2)(b) stopped moving when Police Officer Mciver placed his hand on him. Police Officer Mciver explained again why § 87(2)(b) could not proceed. § 87(2)(b) again tried to go around Police Officer Mciver, and Police Officer Mciver used the same hand motion and position to prevent this. Police Officer Mciver told § 87(2)(b) a third time that he had to go back towards the church.

Police Officer Mciver then “escorted” or “nudged” § 87(2)(b) back across the street by pushing him in the back. Police Officer Mciver did not push with such force that § 87(2)(b) fell or lost his balance. Rather, § 87(2)(b) was moving under his own power. When asked to further clarify this portion of the incident, Police Officer Mciver said that he “turned § 87(2)(b) around and started nudging him back towards the street,” touching § 87(2)(b) on either his arm or shoulder. Police Officer Mciver did not use a restraint or compliance hold at this point. Rather, Police Officer Mciver used his flattened hand to guide § 87(2)(b) by pushing either the middle of his back or his shoulder. § 87(2)(b) was not handcuffed, and Police Officer Mciver did not hold or grip his clothes. § 87(2)(b) did not attempt to evade Police Officer Mciver during this process.

Police Officer Mciver walked with § 87(2)(b) to the southeast corner of the intersection. They stopped while still on the street side of the barriers, not yet fully on the sidewalk, because Police Officer Mciver would have had to move the barriers for them to access the sidewalk. § 87(2)(b)

was still complaining about the situation, and Police Officer Mciver told him to leave the area. Police Officer Mciver wanted § 87(2)(b) to go across the street to the northwest corner subway entrance go down into the subway system, and then cross under East 138th Street. At this point, this route had been explained to § 87(2)(b) both by Police Officer Mciver and by another officer.

§ 87(2)(b) was “still mad” and still complaining about the situation. Police Officer Mciver told § 87(2)(b) to “move on.” Police Officer Mciver then gave § 87(2)(b) s arm a “baby tap” to direct him to move. § 87(2)(b) then dropped his phone. Police Officer Mciver picked it up and gave it back to him.

In his interview, Police Officer Abidin stated that he did not recall any portion of this specific incident. He did, however, recall that police barricades were set up along both sides of Alexander Avenue during the marathon to prevent people from entering the marathon route.

§ 87(2)(g)

(Board Review 05).

In § 87(2)(b) s cellphone video of this portion of the incident, blue police barricades are visible on the western side of Alexander Avenue, across the street from the incident itself. Over the course of the video, such barricades are not visible on the eastern side of the street, where the incident occurred. The video shows Police Officer Mciver turning around to face the camera, then stepping towards the camera while raising both of his arms. One of his hands appears to cover the camera’s field of view, at which point the camera falls to the ground, face up, so that the field of view shows multiple officers stepping over it. § 87(2)(b) s body is never visible in the video.



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Under New York state law 240.20.5, a person cannot obstruct vehicular or pedestrian traffic (**Board Review 06**). Under New York Vehicle and Traffic Law 7.23.1102, pedestrians must obey all lawful orders from police officers (**Board Review 07**). Under NYPD Patrol Guide Section 221.01, any application or use of force must be reasonable under the circumstances (**Board Review 08**).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A be exonerated.**

Allegation B: Discourtesy: Police Officer Robert Mciver spoke discourteously to § 87(2)(b)

Allegation C: Offensive Language: Police Officer Robert Mciver made remarks to § 87(2)(b)
based on race.

In his sworn statement, § 87(2)(b) alleged that as Police Officer Mciver led him out of the street he said “You a stupid nigger.”

Police Officer Mciver denied making comments to § 87(2)(b) about his race or ethnicity and denied referring to § 87(2)(b) as “a stupid nigger.” Police Officer Mciver denied hearing another officer use this language.

In his interview, Police Officer Abidin stated that he did not recall any portion of this incident.

Under NYPD Patrol Guide Section 203.09, officers are required to be courteous and respectful when interacting with civilians (**Board Review 09**). Under NYPD Patrol Guide Section 203.10, officers are prohibited from making discourteous or disrespectful remarks regarding another person’s ethnicity or race (**Board Review 10**).

§ 87(2)(g)

§ 87(2)(g) Therefore, it is recommended that **Allegations B and C be unsubstantiated.**

Allegation D: Abuse of Authority: Police Officer Robert Mciver threatened to arrest

§ 87(2)(b)

It is undisputed that, as he approached and made contact with § 87(2)(b) for the second time, Police Officer Mciver verbally threatened to arrest § 87(2)(b). Between timestamps 0:14 and 0:22 of the video, Police Officer Mciver can be heard telling § 87(2)(b) twice that if he did not leave the area, that he would be arrested. In his interview, Police Officer Mciver confirmed that the voice making these threats is his.



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Under NYPD Patrol Guide Section 208.01, an officer may make an arrest for a crime, violation, or traffic infraction committed in his or her presence (**Board Review 11**). Under New York state law 240.20.5, a person cannot obstruct vehicular or pedestrian traffic (**Board Review 06**).

§ 87(2)(g)

Therefore, it is recommended that **Allegation D be exonerated.**

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**Board Review 12**).
- Police Officer Mciver has been a member of service for 6 years and has been a subject in three CCRB complaints and seven allegations, of which two were substantiated:
 - 201405620 involved substantiated allegations of frisk and vehicle search against Police Officer Mciver. The Board recommended Command Discipline A and the NYPD imposed Command Discipline A.
 - § 87(4-b), § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- A request for any Notice of Claim related to this incident was filed with the New York City Office of the Comptroller, and the results will be added to the case file upon receipt.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 12

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date